The elderly artist had sought the dismissal of various cases filed against him for allegedly offending public decency and morality by his 'obscene' use of nudity in his paintings, particularly those of Hindu goddesses and of 'Bharat Mata'. While Justice Kaul's ruling took care of the legal aspects of the cases against Husain, his larger observations on the issue deserve the attention of every thinking Indian.

The most important of these, I believe, is the judge's rejection of the tendency of thin-skinned (or maliciously motivated) people across the country to claim to be offended by artistic and literary works. If you're easily offended, he argues, don't read the book, look at the painting or open the website that offends you, but don't prevent the artist or writer from enjoying his constitutionally protected freedom of expression. What is vital, according to Justice Kaul, is to look at the work of art from the artist's point of view—his or her intent rather than the hyper-sensitive viewer's reaction. Lest he be promptly denounced by the Hindutva brigade as a deracinated pseudo-secularist, the judge wisely cites Swami Vivekananda's words in defence of his approach: 'We tend to reduce everyone else to the limits of our own mental universe and begin privileging our own ethics, morality, sense of duty and even our sense of utility. All religious conflicts arose from this propensity to judge others. If we indeed must judge at all, then it must be "according to his own ideal, and not by that of anyone else". It is important, therefore, to learn to look at the duty of others through their own eyes and never judge the customs and observances of others through the prism of our own standards.'

But Justice Kaul goes even further in extending the boundaries of the permissible in India. Nudity and sex, he argues, have an honoured place in art and literature: 'In the land of the Kama Sutra, we shy away from its very name?' he asks in surprise. 'Beauty lies in the eyes of the beholder and so does obscenity… [In Hindu tradition], sex was embraced as an integral part of a full and complete life. It is most unfortunate that India's new "puritanism" is being carried out in the name of cultural purity and a host of ignorant people are vandalising art and pushing us towards a pre-Renaissance era.'